

IN THE EMPLOYMENT TRIBUNAL

Claimant: Stanley Wong

Respondent: OneSavings Bank PLC

GROUNDS OF CLAIM

1. Introduction

1.1 The Claimant, a model validation specialist who is on the autism spectrum, brings claims for direct disability discrimination (s.13 Equality Act 2010), discrimination arising from disability (s.15 EqA), victimisation (s.27 EqA), and failure to make reasonable adjustments (ss.20-21 EqA) arising from his application for the role of Lead Model Validation Analyst ("the Role") in February–April 2026. These claims are brought under section 39 of the Equality Act 2010, which applies the foregoing prohibitions to the recruitment context.

1.2 The central contention is that the Respondent used its own Disability Confident Scheme ("DCS") to identify the Claimant's disability, then subjected him to a predetermined 9-minute interview with no technical content, and rejected him on grounds that were never listed in its own job advert. The interview also failed to implement any of the adjustments the Respondent had acknowledged in writing five weeks earlier.

2. The Role and the Advertised Criteria

2.1 The Respondent advertised the Role at a salary of £50,000–£60,000. The essential requirements were:

- Previous model validation or model development experience,
- Advanced use of SAS, WPS or similar software,
- Up-to-date knowledge of PRA/EBA requirements (including IRB),
- A degree in a quantitative field.

2.2 The Claimant met all the essential criteria. He holds an MSc in Econometrics from Erasmus University, has substantial model validation experience including a role as Model Validation Manager at TSB Bank, and has used SAS, Python, and R for statistical modelling and independent validation work. His experience spans market risk, stress testing, treasury risk, and valuation control — all areas directly relevant to the Role as the Respondent described it.

2.3 Neither IFRS9 experience nor credit risk modelling experience was listed as essential or desirable. The advert described the role as covering "a breadth of models"

including market-based models, liquidity models, and stress testing models — all areas within the Claimant's expertise.

2.4 By inviting the Claimant to interview, the Respondent acknowledged that he met the advertised minimum criteria. The subsequent rejection for lacking IFRS9/credit risk experience is therefore inconsistent with the Respondent's own advert and its own prior assessment of suitability.

3. Chronology of Events

3.1 Application — 26 February 2026

The Claimant submitted his application for the Role on 26 February 2026. The Respondent acknowledged receipt the same day via automated email from OneSavings Bank PLC.

3.2 Adjustment disclosure — 6 March 2026

On 6 March 2026, the Claimant emailed Talent Acquisition Partner Tabitha Darbyshire-Phillips setting out the adjustments he required:

- "1. Clear objective definition: I perform best when the intended focus or success criteria of a question are explicit.
- 2. Sequential handling of multilayered questions."

Ms Darbyshire-Phillips acknowledged these adjustments in writing the same day. The Respondent therefore had five weeks' notice before the interview.

3.3 Protected act disclosure — 10 March 2026

During a telephone screening call which lasted 14 minutes, Ms Darbyshire-Phillips asked the Claimant why he had left his previous employer. The Claimant answered honestly that he had been dismissed by Phoenix Group Management Services Limited and that this dismissal was the subject of a live Employment Tribunal claim for disability discrimination (Case No. 6012467/2024). This disclosure constitutes a protected act under section 27(2)(b) of the Equality Act 2010.

3.4 The role is put on hold — 12 March 2026

Just two days after the protected act, Ms Darbyshire-Phillips emailed the Claimant to say the Role had been "placed on hold for the foreseeable future". The Claimant's application was suspended.

3.5 Parallel application for Stress Testing Manager role — 2 April 2026

On 2 April 2026, the Claimant applied for a second role at the Respondent: Stress Testing Manager, Capital Planning ("the Stress Testing role"). The Respondent acknowledged receipt the same day via automated email from OneSavings Bank PLC.

3.6 DCS disclosure and written commitment — 3 to 8 April 2026

The Claimant disclosed his autism in writing on 3 April and requested to apply under the DCS. On 7 April he clarified that DCS meant "the Disability Confident Scheme". On 8 April Ms Darbyshire-Phillips replied:

"Thank you for sharing this information with us. I can confirm that your disclosure has been noted and will be taken into consideration for both the Stress Testing role and the Lead Validation role, which has now been re-opened.

We will be progressing your application in line with DCS guidelines. As part of this process, we will assess your application against the minimum requirements outlined in the job description to determine eligibility for interview."

Thus the Respondent, now fully aware of the Claimant's disability, his DCS request, his specific adjustment needs, and his live Tribunal claim, committed in writing to apply DCS guidelines and to reassess against the advertised minimum criteria. This commitment applied to both the Lead Model Validation role and the Stress Testing role.

3.7 The interview — 15 April 2026

The Claimant attended a Webex interview with Umer Ali (line manager for model validation). The interview lasted approximately 9 minutes. Mr Ali asked only:

- What were the Claimant's motivations for applying?
- Does the role align with his future goals?
- Which programming language is he proficient in?
- Had he worked on specific credit risk models such as IFRS9 or IRB?
- Did he have the right to work in the UK?

No technical questions were asked at all. None of the pre-disclosed adjustments were implemented. When the Claimant answered the IFRS9/IRB question by stating his experience was mostly in market risk but that validation skills are transferable, Mr Ali responded "okay, good" and moved immediately to the administrative right-to-work question.

Significantly, Mr Ali himself confirmed during the interview that the team's model catalogue includes more than just credit risk models, expressly referencing "market based model like liquidity models and stress testing models". This breadth description matches the Claimant's expertise and entirely undercuts the narrow "credit risk / IFRS9" ground later used to reject him.

3.8 The morning of 17 April 2026 — three contemporaneous actions

The following events all occurred on the morning of 17 April 2026 within a short period. All timestamps are UK time (BST).

3.8.1 Verbal rejection — approximately 9:51 am

At approximately 9:51 am, Ms Darbyshire-Phillips telephoned the Claimant and verbally communicated the rejection for the Lead Model Validation role.

3.8.2 Request to withhold disability information from the Stress Testing hiring manager — 10:24 am

At 10:24 am, approximately 30 minutes after the verbal rejection, the Claimant emailed Nicola Lavin (the recruiter handling the Stress Testing role) in the following terms:

"Would it be possible for me **not** to apply under the DCS and **not** to make the hiring manager aware of the need for adjustments? I am going to try it without."

The Claimant made this request because he had inferred from his experience of the Lead Model Validation recruitment process — including the 9-minute interview on 15 April 2026 with no technical content and no adjustments, and the verbal rejection that morning — that his disability disclosure and DCS application had harmed rather than helped his candidacy. This email constitutes a contemporaneous documentary record, created within approximately 30 minutes of the verbal rejection, in which the Claimant identified the discriminatory effect of the Respondent's DCS process in real time.

Ms Lavin replied later that day at 12:32 pm:

"That is no problem at all, your application will not be under the DCS as requested, and any conversations we have had regarding DCS or adjustments will remain confidential and nothing will be shared with the Hiring Manager."

3.8.3 Written challenge to the rejection for the model validation role — 11:29 am

At 11:29 am, the Claimant emailed both Ms Darbyshire-Phillips and Mr Ali challenging the rejection in the following terms:

"Model validation is a discipline where you need to have knowledge of multiple fields and able to see the holistic picture. Specific IFRS9 credit risk modelling is not necessary. It is important that a good model validator is able to get mistakes out of a model. I am not an IFRS9 specialist. I am a model validation specialist. So, I don't fully agree with the feedback given. I actually simply do not agree."

The Respondent did not provide any substantive rebuttal to this challenge.

3.9 The written rejection — 21 April 2026

On 20 April 2026 at 8:34 pm, the Claimant emailed Ms Darbyshire-Phillips requesting that the verbally communicated rejection reason be confirmed in writing. On 21 April 2026 at 10:23 am, Ms Darbyshire-Phillips replied:

"You articulated yourself clearly throughout the call, including your motivations for applying and interest in the role. You also presented a friendly demeanour. However, you evidenced a lack of experience with credit risk models such as IFRS9 or IRB."

4. Claim 1: Direct Disability Discrimination (s.13 EqA)

4.1 The Respondent knew the Claimant was disabled. It committed in writing to apply DCS guidelines.

4.2 The treatment the Claimant received was less favourable than a non-disabled comparator would have received in the same circumstances:

- A 9-minute interview for a senior technical role, containing no technical questions and no opportunity to demonstrate competence,
- A complete failure to implement the adjustments acknowledged in writing five weeks earlier,
- Rejection on a criterion that was not in the job advert, was not explored in the interview (despite the interviewer himself confirming the role's breadth), and was dismissed with "okay, good" when briefly raised.

4.3 The sequence of events (disability disclosure → DCS commitment → 9-minute non-technical interview → rejection on unadvertised grounds, contradicted by the interviewer's own description of the role) points strongly to a predetermined outcome. The DCS process, intended to protect disabled candidates, instead functioned to flag the Claimant's disability before any substantive assessment occurred.

4.4 The Claimant invites the Tribunal to find that the burden shifts to the Respondent to provide a cogent, non-discriminatory explanation that accounts for all these inconsistencies simultaneously.

5. Claim 2: Discrimination Arising from Disability (s.15 EqA)

5.1 The Claimant's adjustment request of 6 March 2026 and his DCS application of 3 April 2026 constitute things arising in consequence of his disability. The Claimant requires clear objectives, technical substance, and sequential questioning because of his autism. He applied under the DCS because he is a disabled person. Both actions arose from his disability.

5.2 The Respondent treated the Claimant unfavourably because of these things arising from his disability. The unfavourable treatment comprised:

- Subjecting the Claimant to a 9-minute interview with no technical content and no opportunity to demonstrate competence,
- Failing to implement any of the adjustments that had been requested and acknowledged,
- Rejecting the Claimant on a criterion that was not in the job advert, was not explored in the interview, and was contradicted by the interviewer's own description of the role.

5.3 The Respondent had written knowledge of the Claimant's adjustment needs from 6 March 2026, and knew the Claimant was disabled from 3 April 2026 when the Claimant disclosed his autism in writing. That knowledge was confirmed on 8 April 2026.

5.4 The Respondent cannot show that this treatment was a proportionate means of achieving a legitimate aim. The adjustments requested were straightforward: clear objectives, technical substance, and sequential questioning. Implementing them would not have imposed any burden on the Respondent. A genuine technical interview with those adjustments would have been a less discriminatory means of assessing the Claimant's suitability. The Respondent's failure to take that course, and its resort instead to a perfunctory 9-minute conversation, cannot be justified.

6. Claim 3: Victimisation (s.27 EqA)

6.1 The disclosure of a live disability discrimination claim against a former employer is a protected act. The Respondent itself created the occasion for this disclosure by asking directly why the Claimant had left his previous role.

6.2 Two days after that disclosure, the Role was placed on hold. When it was later reopened, the Claimant was subjected to an 9-minute, non-technical interview and rejected on grounds not contained in the job advert. This detriment followed immediately after the protected act and is consistent with a hiring process influenced by knowledge that the Claimant had previously enforced his legal rights.

6.3 The protected act marked the Claimant as someone who had brought proceedings under the Equality Act. The inference is that this knowledge (whether held solely by Ms Darbyshire-Phillips or communicated to Mr Ali) contributed to the decision to reject him.

7. Claim 4: Failure to Make Reasonable Adjustments (ss.20-21 EqA)

7.1 The Respondent's standard interview format placed the Claimant at a substantial disadvantage. His disability means he requires explicit objectives, technical substance, and sequential questioning to perform effectively.

7.2 The Respondent had written knowledge of these required adjustments from 6 March 2026 and acknowledged them the same day.

7.3 The Respondent failed to implement any of those adjustments. The interview contained no technical questions, no clear objectives, and no structured sequence. The duty to make reasonable adjustments was therefore breached.

8. The Cumulative Picture

8.1 The following facts are all supported by the disclosed documents:

- The Claimant met all the essential criteria advertised for the Role and had directly relevant experience as a Model Validation Manager at TSB Bank.
- The Respondent knew of the Claimant's disability, adjustments, DCS request, and protected act well before the interview.
- The role was placed on hold two days after the protected act.
- The Respondent promised in writing to apply DCS guidelines.
- The interview lasted 9 minutes, with no technical questions and no adjustments implemented.
- The interviewer himself confirmed the role covers market risk, liquidity, and stress testing models — not only credit risk.
- The only question touching the eventual rejection reason was met with "okay, good" and immediately dropped.
- The rejection reason does not appear in the job advert and directly conflicts with the interviewer's own description of the role.
- The Claimant's contemporaneous challenge went unanswered.

8.2 The only coherent explanation is that the outcome was predetermined, motivated by the Claimant's disability, something arising from his disability, his protected act, or a combination of these. The stated reason was a pretext.

9. Remedy

The Claimant seeks:

- A declaration that the Respondent contravened the Equality Act 2010,
- Compensation for injury to feelings (middle to upper Vento band),
- Compensation for financial loss,
- Aggravated damages,
- Interest,
- Such further or other relief as the Tribunal thinks just.